

2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: MSL17-01582

CASE NAME: THE BEST SERVICE CO VS APRIL A. APRESTO

*HEARING ON MOTION IN RE: FOR DEFAULT ON CONDITIONAL SETTLEMENT AGREEMENT AND
STIPULATION FOR JUDGMENT

FILED BY: THE BEST SERVICE CO., INC.

TENTATIVE RULING:

Plaintiff The Best Service Co. Inc. ("Plaintiff") filed a Motion for Default on Conditional Settlement and Stipulation for Judgment on September 30, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed September 6, 2017 (the "Settlement Agreement"), the terms of which included payment by the defendants April A. Apresto and Naiche R. Freeman ("Defendants") in the amount of \$8,316.74, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Christopher Vasquez filed September 30, 2025 as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶4 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default, in the foregoing principal amount (\$6,529.94) plus prejudgment interest (\$1,995.38), attorneys' fees (\$941.80) and costs (\$845.00), for a total of \$10,312.12. *Id.*, **Exhibit A**, ¶2.

Defendants defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶5-6. Defendants failed to cure after notice. *Id.* at ¶6 and **Exhibit B** thereto.

A total of \$6,040.00 in payments were made by Defendants. *Id.* at ¶5. After credit for amounts paid, there remains \$489.94* principal due and owing, plus the prejudgment interest of \$1,995.38, the attorneys' fees of \$941.80 and the costs of \$845.00, for a total judgment of **\$4,272.12**.

*Plaintiff's Supporting Declaration refers to a higher principal sum of \$1,598.94 and a total of \$4,536.12. *Id.* at ¶5. However, Plaintiff fails to adequately account for the calculation of these higher sums.

Analysis

Defendants were duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendants were duly served with the motion.

2. The Court finds that Defendants are in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendants in the principal amount of \$489.94, plus prejudgment interest of \$1,995.38, attorneys' fees of \$941.80 and costs of \$845.00, for a total judgment of \$4,272.12.
4. The Court shall issue the order after hearing.
5. Plaintiff to submit a proposed form of money judgment against Defendants. Any prior dismissal entered herein against the Defendants is hereby set aside in connection with entry of such judgment.

13. 9:00 AM CASE NUMBER: MSL21-01906
CASE NAME: JPMORGAN CHASE VS CYNTHIA WARRENDER
***HEARING ON MOTION IN RE:**
FILED BY: WARRENDER, CYNTHIA L
TENTATIVE RULING:

Defendant and judgment debtor Cynthia L Warrender ("Defendant") filed a Motion to Vacate Default and Default Judgment on October 6, 2025 (the "Motion to Vacate Judgment"). The Motion to Vacate Judgment was set for hearing on December 16, 2025. A Proof of Service regarding the Motion to Vacate Judgment was filed November 4, 2025. No opposition was filed.

Background

Plaintiff and Judgment creditor JPMorgan Chase Bank, N.A. ("Plaintiff") filed a Complaint on September 3, 2021. A default was entered against Defendant on January 3, 2022 (the "Default"). Thereafter, a default money judgment was entered on September 1, 2022 against Defendant in the total amount of \$11,005.26 (the "Default Judgment").

Analysis

Defendant contends that service was not properly made upon Defendant.

1. Validity of Service

The subject proof of service recites that service was done on Defendant by personal service on October 27, 2021: